

that age the testatrix gave the legacy to his brother and sister equally, Lord Alvanley said, "It certainly was not competent under this trust to the executor, nor could he, *if he had applied*, have obtained permission from this Court, to advance any part of the capital of the legacy in putting the child out in the world; for *if it had been such a case that the Court would have authorised the act that was done, I desire to be understood that it would be considered as properly done; for the principle is now established, that if an executor does without application what the Court would have approved, he shall not be called to account, and forced to undo that merely because it was done without application*" (d). But

[*589] where an infant was entitled, on a contingency, * and at a certain time but which had not arrived there was a power of advancement, and the trustee took upon himself the risk as against the person entitled if the contingency did not happen, and applied part of the capital for the advancement of the infant, he was allowed it in his account as between him and the infant who in the event became entitled (a).

38. **Where there are cross limitations amongst the children.**—And where legacies were given to children payable at twenty-one or marriage, with a limitation over on the death of any child before attaining twenty-one or marriage, *not in favour of a stranger, but for the benefit of such of the children as should attain twenty-one or marry*, a trustee, who had paid a premium on the apprenticeship of a child who died under twenty-one was allowed it by the Court (b). The case turned upon the same principle as where a legacy is given to a class, all or some of whom must take the fund absolutely, when, as all have an equal chance of survivorship, the individuals of the class will be ordered maintenance even before their shares in the fund have become actually vested (c). This power is exercised by the Court, but cannot be exer-

(d) *Ib.* 369.

(a) *Worthington v. M'Crae*, 23 Beav. 81.

(b) *Franklin v. Green*, 2 Vern. 137. That the limitation over was for the benefit of the children is not men-

tioned in the report, but appears from Reg. Lib.

(c) See *Rop. Leg.* chap. xx. s. 5; *Greenwell v. Greenwell*, 5 Ves. 194; *Cavendish v. Mercer*, cited *Ib.*; *Brandon v. Aston*, 2 Y. & C. C. C. 30.